

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #12	CCRB Case #: 201510819	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 12/12/2015 3:17 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 6/12/2017	Precinct: 28		
Date/Time CV Reported Thu, 12/17/2015 10:38 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/28/2015 11:04 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Robert Bernhard	01725	924943	NARCBMN
2. DT3 Andry Duarte	1103	946957	NARCBMN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Robert Bernhard	Discourtesy: On an unknown date, in front of § 87(2)(b) Det. Robert Bernhard spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . DT3 Andry Duarte	Abuse: On December 12, 2015, in front of § 87(2)(b) Det. Andry Duarte stopped § 87(2)(b)	B . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) filed this complaint with IAB on December 17, 2015, regarding two incidents with officers from Manhattan North Narcotics on an unknown date and on December 12, 2015.

On an unknown date, at approximately 9:00 p.m., Det. Robert Bernhard allegedly said to § 87(2)(b) “What the fuck is you looking at?” and “Mind your fucking business?” in front of § 87(2)(b) in Manhattan (**Allegation A**). § 87(2)(b) was not arrested or issued a summons. § 87(2)(b) did not know at the time that Det. Bernhard was a member of the service until § 87(2)(b) saw him again during the incident on December 12, 2015.

On December 12, 2015, at approximately 3:17 a.m., Det. Andry Duarte stopped § 87(2)(b) in front of § 87(2)(b) in Manhattan regarding a buy and bust operation (**Allegation B**). § 87(2)(b) was not arrested or issued a summons. § 87(4-b), § 87(2)(g) One individual, § 87(2)(g), was arrested in regards to the investigation (**01 Board Review**).

§ 87(2)(b) provided a cellphone audio recording of a conversation between § 87(2)(b) Det. Duarte, and Det. Bernhard following the incident on December 12, 2015 (**08 Board Review; 09 Board Review**).



2016-03-09_11-45-49.mp4

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation.
- As of March 4, 2016, § 87(2)(b) has not filed a Notice of Claim regarding this incident (**02 Board Review**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**04 Board Review**).
- Det. Robert Bernhard has been a member of the service for 16 years and there are no substantiated CCRB allegations against him. This is Det. Bernhard's first CCRB complaint.
- Det. Andry Duarte has been a member of the service for 7 years and there are no substantiated CCRB allegations against him.

Findings and Recommendations

Allegation A: Discourtesy- On an unknown date, in front of § 87(2)(b) Det. Robert Bernhard spoke discourteously to § 87(2)(b)

Sometime in late October or early November of 2015, at approximately 9:00 p.m., § 87(2)(b) was standing in front of his apartment building located at § 87(2)(b) in Manhattan. § 87(2)(b) stared across the street at a parked black SUV, thinking about what he was going to eat for dinner, when he heard a male voice yelling at him. Det. Bernhard, who was in the SUV and was dressed in plainclothes, yelled at § 87(2)(b) “What the fuck is you looking at? What do you want? Can I help you?” § 87(2)(b) ask Det. Bernhard why he was

cursing at him. Det. Bernhard responded, “Mind your fucking business.” § 87(2)(b) walked away approximately one minute later **(05 Board Review)**.

Det. Bernhard did not recall interacting with § 87(2)(b) on any date other than the incident on December 12, 2015 and he denied making the alleged discourteous statements to § 87(2)(b) **(07 Board Review)**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation B: Abuse of Authority: On December 12, 2015, in front of

§ 87(2)(b) **Det. Andy Duarte stopped** § 87(2)(b)

It is undisputed that § 87(2)(b) was one of two individuals stopped for an investigation of a sale of narcotics.

On December 12, 2015, at approximately 3:00 a.m., § 87(2)(b) was stopped by Det. Duarte in front of his apartment building at § 87(2)(b). Det. Duarte told § 87(2)(b) that he was being detained because he “fit the description.” § 87(2)(b) did not recall what he wore on this day. Det. Duarte also handcuffed § 87(2)(b). Another male, identified via the investigation as § 87(2)(b), § 87(2)(b) was also in handcuffs and standing in front of the apartment building and there were multiple plainclothes officers also standing around. No other civilians were on the street. Approximately five minutes later, Det. Duarte told § 87(2)(b) that he was not the person they were looking for and § 87(2)(b) was released **(05 Board Review)**.

In the audio recording provided by § 87(2)(b) Det. Duarte explains to § 87(2)(b) that he was stopped because he fit the description of a suspect wanted for sale of narcotics. Det. Duarte mentions that § 87(2)(b) was released because he was not identified as one of the suspects. Both Det. Duarte and Det. Bernhard stated their names on the recording **(08 Board Review; 09 Board Review)**.

Det. Duarte stated that he and members of his field team were conducting buy and bust operations. Sgt. Ruthizer relayed via a point-to-point radio that there was a positive buy and gave the description of two black males wearing dark clothes who were in front of the location and that there were no other individuals on the block. Det. Duarte and PO Mills responded to the location and were the first officers to arrive. Det. Duarte stopped § 87(2)(b) in front of § 87(2)(b) and told § 87(2)(b) that he was under investigation for the moment and they were waiting for a positive identification. Approximately two minutes later, Det. Duarte noticed § 87(2)(b) walking in his direction. § 87(2)(b) also fit the description, he was alone, and there was no one else on the block. Det. Duarte stopped § 87(2)(b) and told him that they were conducting an investigation in front of the building and were waiting for a positive identification. § 87(2)(b) and § 87(2)(b) were handcuffed for the officers’ safety. Approximately five minutes later, § 87(2)(b) was identified as one of the suspects and he was placed under arrest **(01 Board Review)**. § 87(2)(b) was not identified as one of the suspects and was therefore released **(06 Board Review)**.

Det. Bernhard did not recall the description of the two males, other than black males, and he arrived after § 87(2)(b) was stopped **(07 Board Review)**.

§ 87(2)(b) arrest report notes that he and another individual who was not apprehended exchanged U.S. currency with an undercover officer for a quantity of a control substance. § 87(2)(b) was charged with criminal sale of a controlled substance in the third degree **(01 Board Review)**.

According to N.Y.S. Criminal Procedure Law §140.50(1), a police officer may stop a person when he reasonably suspects that such person is committing, has committed, or is about to commit a crime **(10 Board Review)**.

§ 87(2)(g)
Therefore, it is recommended that **Allegation B** be closed as **Exonerated**.

§ 87(4-b), § 87(2)(g)
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Squad: 12

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date